

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN ARGENTINA

A practical, honest, step-by-step guide for residents, assemblies and organisations facing a mine, dam, fracking pad, factory, waste site, port, highway or real-estate mega-project that threatens their health, land or water.

This guide is grounded in Argentine law and real Argentine campaigns. It does not promise victory. It sets out what has actually worked, what the legal tools really do, where the system leans toward approval, and how to tell an ordinary loss apart from genuine corruption.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up.

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INTRODUCTION & FRAMEWORK

Why This Matters

Across Argentina, the same story repeats: an open-pit mine above a town's water supply, a fracking pad in Vaca Muerta, a lithium project on the salt flats of the Puna, a soy frontier eating into native forest, a riverside neighbourhood poisoned by tanneries, a wetland drained for gated developments. The people who live there almost never hear about it early, and by the time the bulldozers are visible the decision feels sealed.

It usually is not. Argentina has, on paper, one of the stronger environmental-rights frameworks in Latin America — a constitutional right to a healthy environment, a duty on polluters to *restore* what they damage, and a fast constitutional remedy (the **amparo**) that almost anyone can file. Communities have used these tools to stop cyanide gold mines, to force the clean-up of the country's most polluted river, and to hold megaprojects in court for years until they collapsed. None of it happened automatically. It happened because residents organised early, documented carefully, and used the specific legal doors the system leaves open.

This guide exists because those doors are hard to find when you are frightened, tired and new to all of it. It lays them out plainly.

The Strategic Framework

Winning campaigns in Argentina almost always combine five things. No single one is enough; the combination is what holds.

1. **Target identification** — Know exactly what is being decided, by which level of government, under which law, and by what date. Argentine environmental power is split between the **Nación** (national government), 23 **provinces** plus the City of Buenos Aires, and municipalities. Getting this wrong wastes months.
2. **Documentation** — Build an evidence record so solid that approving the project becomes legally risky. In Argentina the record you create during **participación ciudadana** (citizen participation) and the **audiencia pública** (public hearing) is not just protest; it becomes part of the file a judge later reads.
3. **Local opposition** — Organise a durable base. Argentina's tradition of neighbourhood **asambleas** (citizen assemblies) is one of the most powerful community forms in the hemisphere; the anti-mining assemblies that stopped projects in Esquel, Famatina and Andalgalá began exactly this way.
4. **Legal challenges** — Use the **amparo ambiental**, the collective-damage action, and the **precautionary principle** to force pauses, disclosure and, sometimes, cancellation.
5. **Media strategy** — Make the fight visible and legible, so decision-makers pay a political price for approval.

The distinctive lever in Argentina — the thing that gives this system its particular character — is the combination of **Article 41 of the Constitution** and the **Ley General del Ambiente** (General Environmental Law No. 25.675). Article 41 gives every inhabitant a right to a healthy, balanced environment and says that environmental damage "will primarily generate the obligation to **restore**" (*recomponer*). The General Environmental Law then hands almost anyone the standing to enforce that: the affected person, the **Defensor del Pueblo** (Ombudsman), environmental NGOs, and the State itself can sue over **collective environmental damage**, and *any* person may file an **amparo** to make a harmful activity stop. That breadth of access — not a specialised agency, but an open courthouse door — is the spine of this guide.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Be clear-eyed. The same country with these strong tools also owns its resources at the provincial level, and many provinces depend on mining, oil and gas royalties to pay salaries — so provincial governments frequently *want* the project. The environmental study is usually written by consultants the company pays. The public hearing is mandatory but its result is **not binding**. Since 2024, the national **Régimen de Incentivo para las Grandes Inversiones (RIGI)** offers thirty years of tax, customs and regulatory stability to large investments, which critics say shields extractive projects from later community and legal challenge. The national environment authority has been downgraded from a ministry to a sub-secretariat, and in 2026 Congress narrowed the **Glacier Law's** protections.

None of this means you lose. It means you should expect the system to lean toward "yes," plan for a longer fight, and lean hardest on the tools that are *hardest* for officials to ignore — the mandatory hearing record, the precautionary principle, and the courts. Section 10 explains this tilt in honest detail; Section 11 explains how to tell it apart from outright corruption.

HOW THE SYSTEM WORKS: WHO DECIDES, AND HOW

Before the steps, a plain-language primer. If you understand this section, you are ahead of most people who walk into this fight.

The levels of government — and what each one controls

Argentina is a **federal** country, and this is the single most important thing to grasp. The Constitution (Article 124) says the provinces own the natural resources in their territory. That means:

- **The province** (or the City of Buenos Aires) is usually the authority that approves a mine, a provincial road, an industrial plant, a forest-clearing permit or a real-estate development. Each province has its own environmental agency, its own environmental law, and its own **Evaluación de Impacto Ambiental** (Environmental Impact Assessment) procedure. Provincial power is where most of these fights are won or lost.
- **The Nación** (national government) sets **presupuestos mínimos** — nationwide *minimum* environmental standards that provinces cannot fall below (the General Environmental Law, the Forest Law, the Glacier Law, the Water Law and others). It also decides matters that cross provincial borders or involve federal jurisdiction (interjurisdictional rivers, national parks, projects with national funding, nuclear and large energy works). A national floor plus provincial detail is the pattern.
- **The municipality** controls land use, zoning and local permits, and can often be a decisive ally or obstacle — a municipal ordinance or a local **consulta popular** (binding or non-binding local referendum) has stopped projects on its own.

Practical rule: identify *which* level holds the pen on your project before you do anything else. A brilliant campaign aimed at the wrong government achieves nothing.

The expert and decision bodies

- **Provincial environmental authorities** — the secretariat or ministry of environment in your province; they run the EIA and issue the final approval (often called a **Declaración de Impacto Ambiental**, DIA).
- **The national environment authority** — currently a sub-secretariat within a larger ministry; it handles federal-jurisdiction matters, the native-forest and glacier regimes, and national policy. Its downgrading is itself a signal of the current tilt.
- **ACUMAR** — the tri-jurisdictional basin authority created to clean up the Matanza-Riachuelo river after the Supreme Court's *Mendoza* ruling; a model for how a court can build an enforcement body.
- **IANIGLA** — the state glaciology institute that compiles the **National Glacier Inventory** used to decide where mining is barred.
- **Chubutazo** — the week of mass protest in Chubut in December 2021 that forced the repeal of a law which would have opened the province to mining; a landmark defence of an existing provincial ban.
- **COFEMA** — the Federal Environmental Council, where the Nación and provinces coordinate policy.
- **The Ministerio Público Fiscal** (public prosecutors), including specialised environmental units, which can bring criminal or public-interest actions.
- **The Defensor del Pueblo** (Ombudsman), who has explicit standing to sue over collective environmental damage — but note honestly that the *national* Ombudsman post has sat vacant for years, a real gap; some provinces have their own functioning ombudsmen.

How a decision is actually made — the permit journey

For most projects the path looks like this:

1. The proponent files a project and an **Estudio de Impacto Ambiental** (EIA) — the technical impact study, prepared by consultants the company hires.
2. The authority reviews it and (for projects that qualify) opens **participación ciudadana** and calls an **audiencia pública** — a mandatory public hearing where anyone can speak and submit written observations.
3. The authority weighs the study, the observations and its own technical review, then issues (or refuses) the environmental approval — the DIA.
4. Construction and operating permits follow.

Two things matter enormously here. First, the hearing is **mandatory but non-binding** — skipping it, or holding it as a sham, is a serious legal defect you can attack; but a well-run hearing that goes against you does not by itself stop the project. Second, everything filed in participation becomes part of the **administrative file** (*expediente*), which a judge can later examine. Your written observations are evidence.

A practical note on *which* projects trigger a full assessment and hearing: each province lists the activities that require an Environmental Impact Assessment — typically mining, hydrocarbons, large infrastructure, industrial plants, waste facilities, forest clearing above a threshold, and sizeable developments. Smaller works may face only a lighter procedure or none. Two things follow. First, check your province's list early: if the project legally *requires* an EIA and a hearing and the proponent is trying to avoid one (by splitting a big project into small pieces, a tactic called "salami-slicing," or by mis-categorising it), that evasion is itself a strong legal challenge. Second, if the project is below the threshold that guarantees a hearing, you may have to *demand* participation actively rather than wait for it — and the Escazú Agreement's participation guarantees strengthen that demand.

The rulebook — the laws that decide the outcome

- **Constitution, Article 41** — the right to a healthy environment and the polluter's duty to *restore*.
- **Constitution, Article 43** — the **amparo**, a fast constitutional action against acts that harm rights, including collective rights like the environment.
- **General Environmental Law No. 25.675 (LGA)** — the master statute: it codifies the **precautionary principle** and prevention principle, defines **collective environmental damage**, sets who may sue, requires EIA and public participation, and mandates environmental insurance for risky activities.
- **Sectoral minimum-standard laws** — Native **Forest Law No. 26.331**, **Glacier Law No. 26.639** (narrowed by Law No. 27.804 in 2026), the Water Law, the industrial-waste law and others.
- **Provincial environmental codes** — each province's own EIA rules and, in some, mining bans (several provinces prohibit open-pit metal mining with cyanide).
- **Mining Investment Law No. 24.196** and the Mining Code — the incentive framework that makes mining attractive,

and, since 2024, the **RIGI**.

- **The Escazú Agreement (Law No. 27.566)** — the regional treaty guaranteeing access to environmental information, participation and justice, and protection of environmental defenders, including a **non-regression** principle that rollbacks cannot legally reduce existing protection.

Follow the money — why the system often leans toward "yes"

Provinces own the resource and collect the royalties, so a mine or oilfield can be a province's largest revenue source — which aligns the very government that regulates the project with the project's success. National policy since 2023 has prioritised extraction (lithium, copper, shale oil and gas in Vaca Muerta) as a source of dollars, and the RIGI locks in incentives for decades. Understanding this is not cynicism; it tells you *why* the technical process can feel pre-decided, and *where* to apply pressure — the political and legal costs of approval, not the merits alone.

The overseers — who watches the decision-makers

The **courts** (provincial, federal, and the **Corte Suprema de Justicia de la Nación**, CSJN) are the strongest overseers, because the amparo gives fast access to them. The **Ministerio Público Fiscal** can investigate. The **Auditoría General de la Nación** and provincial audit courts review public spending. The **Agencia de Acceso a la Información Pública** enforces the freedom-of-information law. The **Oficina Anticorrupción** handles official misconduct. And civil society — the assemblies, FARN, Greenpeace, university law clinics — functions as a de facto overseer, patrolling, documenting and litigating.

QUICK REFERENCE: SUCCESS RATES BY STEP & COMBINATION

These figures are **directional estimates**, not published statistics. They reflect patterns seen across Argentine campaigns, and are here to help you allocate scarce time and money — not to promise an outcome.

Individual Step Success Rates

- **Documentation alone:** low as a stopper (~10–20%). A strong record rarely stops a project by itself, but it is the foundation everything else stands on.
- **Local opposition alone:** moderate (~20–35%). Sustained assemblies raise the political cost, but organising without a legal or media track tends to plateau.
- **Legal challenge alone:** variable (~25–45%). An amparo can win a pause or a cancellation, especially on procedural defects or precautionary grounds — but courts dislike substituting their judgment for the agency's on the merits.
- **Media alone:** low as a stopper (~10–20%). Coverage shifts politics but doesn't decide permits.
- **Citizen participation done well:** underrated (~30%). Substantive written observations that go unanswered create a reviewable legal defect.

Effectiveness Visualization

Think of it as a chain, not a menu:

- Documentation + Opposition → the project becomes politically costly.
- Documentation + Legal → the project becomes legally risky.
- Opposition + Media → the project becomes visible and contested.
- **All five together → the strongest position, historically associated with the wins that actually held.**

The Esquel anti-mining campaign (Chubut, 2003) combined all five: documentation of the water risk, a mass assembly, a local **consulta popular** in which about 81% voted "No," relentless local media, and legal/legislative follow-through that produced a provincial ban. That is the template.

Step Importance Ranking (When All Combined)

1. **Local opposition** — nothing survives without a durable base; assemblies are the engine.
2. **Legal challenges** — the amparo and precautionary principle are Argentina's sharpest tools.
3. **Documentation** — feeds both the courtroom and the press.

4. **Target identification** — cheap, fast, and the thing most often gotten wrong.
5. **Media** — the multiplier that turns the other four into political pressure.

Money follows this ranking: spend first on organising and on the evidence your lawyer will need, not on glossy materials.

What Argentine Campaigns Actually Show

Argentina's record is unusually rich, because the assembly tradition has produced repeated, documented wins — and repeated attempts to roll them back. A few examples that show the full arc:

- **Mendoza and Law 7722 (2007, defended 2019).** Mendoza's Law 7722 bans cyanide and sulfuric acid in mining and blocks water-intensive projects — a protection won by years of assembly pressure. In December 2019 the governor pushed Law 9209 to gut it, and roughly **50,000 people marched more than 100 kilometres** from the Uco Valley to the provincial capital under the slogan "*el agua no se negocia*" (water is not negotiable). Within days the government reversed course and **repealed the reform**, reinstating Law 7722. It is one of the clearest people-power environmental victories in the hemisphere — and, as of 2025, Mendoza's assemblies are mobilising again against a revived copper project (PSJ Cobre Mendocino) near Uspallata.
- **Esquel and the Chubutazo (2003, 2021).** Esquel's 2003 plebiscite (about 82% "No a la Mina") produced Chubut's Law 5001, the country's first provincial open-pit-mining ban. When the legislature tried to overturn it with a "mining zonification" law in December 2021, a week of mass protest — the **Chubutazo** — forced its repeal. (Honesty: years later, courts confirmed criminal convictions of several residents who took part, a reminder that protest now carries legal risk.)
- **Famatina (La Rioja).** The assembly "El Famatina no se toca" held a mountain-pass blockade that repeatedly drove out successive mining companies — organising and physical presence, sustained over years.
- **Andalgalá (Catamarca).** Assemblies resisting the Agua Rica/MARA project won court-ordered suspensions and a municipal ordinance banning mining in the department — the local-government lever in action.

The through-line: durable assemblies, a specific legal or electoral instrument (a provincial law, a plebiscite, a municipal ordinance, a court order), and relentless visibility. None relied on a single tactic.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you cannot define. Before spending a peso or an evening, answer five questions precisely.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Name the specific harm in concrete terms: *how many hectares of native forest, whose drinking-water source, which wetland, how much water per day drawn from which aquifer, what emissions over which neighbourhood.* "It's bad for the environment" persuades no one. "This open-pit project sits above the recharge zone of the aquifer that supplies 12,000 residents and will consume an estimated X million litres of water per day" is the sentence that starts a campaign. Get the project's own numbers from its EsIA and check them.

Question 2: Who Decides?

Identify the exact authority holding the pen — almost always a **provincial** environmental agency, sometimes a national body (for interjurisdictional rivers, national parks, or federally funded works), sometimes a municipality for land use. Find the named office, the file (**expediente**) number, and the responsible official. This single answer determines every address you will write to.

Question 3: What Specific Action Stops It?

Is the decision an EIA approval (DIA) still pending? A forest **OTBN** reclassification? A municipal zoning change? A pending **audiencia pública**? Each has a different intervention point. The goal is to find the *pending decision* you can influence, not the abstract project.

Question 4: When Is the Decision Final?

Deadlines govern everything. When does the participation window open and close? When is the hearing? Argentine

administrative and amparo deadlines can be short — an amparo is meant to be filed promptly once you know of the harmful act. Missing a comment period or an appeal window can end a campaign before it starts. Build a dated timeline immediately and treat it as sacred.

Question 5: Are There Documented Financial or Policy Pressures?

Is the project inside the **RIGI**? Does the province depend on its royalties? Is it a provincial-government priority, a national "strategic" project, or tied to a specific company with political ties? This is not about proving corruption; it is about understanding the current you are swimming against so you can plan realistically and aim your media and legal pressure where it bites.

Worked examples: which level holds the pen

Getting the jurisdiction right is the cheapest decisive move in the whole campaign. Some patterns:

- **An open-pit mine or a lithium project.** Almost always **provincial** — the province owns the mineral, runs the EIA and issues the approval. Your primary arena is the provincial environmental authority and provincial courts, even if the incentives (RIGI) and the company are national or foreign.
- **A dam or contamination on a river that crosses provinces, or a project in a national park.** **Federal** jurisdiction — file with national bodies and in federal court, as *Mendoza* did over the interjurisdictional Matanza-Riachuelo basin.
- **A real-estate mega-development, a landfill, or a change in what may be built on wetland.** Often turns on **municipal** zoning and land-use decisions — a municipal ordinance or a local **consulta popular** can be decisive, and the municipality may be your fastest-moving arena.
- **A fracking pad in Vaca Muerta.** Provincial hydrocarbon authorities lead, but federal energy policy and national "strategic" designations shape the pressure.
- **Clearing native forest for agriculture.** Governed by the province's **OTBN** forest zoning under the national Forest Law — challengeable if the land's protection category forbids clearing.

When a project spans levels, you may need to act on more than one front at once — but always know which authority actually signs the approval you are trying to stop.

Write the answers down in one page. That page is your campaign's spine.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Documentation is what separates a campaign a judge takes seriously from one dismissed as noise. In Argentina it does double duty: it arms your lawyer, and — because your participation submissions enter the official file — it becomes part of the very record on which the decision (and any later court challenge) rests.

The Three Documentation Layers

Build three layers. Each answers a different question and reaches a different audience.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

This is proof of what exists *before* the project — the reference point against which harm is measured.

Documented case — the Matanza-Riachuelo (*Mendoza*) precedent. In July 2004, **Beatriz Mendoza**, a health worker, and seventeen neighbours and professionals from the Matanza-Riachuelo river basin — one of the most polluted areas in the country, including the Villa Inflamable settlement in Avellaneda — filed a collective damages claim directly before the **Corte Suprema de Justicia de la Nación**. They relied on Article 41 of the Constitution and the General Environmental Law, suing the Nación, the Province of Buenos Aires, the City of Buenos Aires and 44 industrial polluters. What made the case winnable was documentation: studies establishing the basin as among the most contaminated in the country, and the concrete health harms to families living beside the industrial hub. In 2006 the CSJN agreed to hear the collective claim and ordered the defendants to produce an integrated clean-up plan; on **8 July 2008** it issued a landmark ruling finding that the governments had a legal duty to prevent harm and to *restore* the basin, and it built a structural remedy: it created enforcement benchmarks, assigned the newly formed basin authority **ACUMAR** to carry out a clean-up

plan (public information, industrial-pollution control, waste-dump removal, water and sewer works), put a federal court in charge of monitoring compliance, and granted standing to NGOs — **Greenpeace Argentina, FARN, CELS**, the La Boca neighbourhood association and the Ombudsman — to patrol the basin and report breaches. Honesty matters here: more than fifteen years later the clean-up remains incomplete, Villa Inflamable is still gravely polluted, and the ruling notably left the 44 companies' liability undecided, effectively shielding them. The case is proof both of how far the constitutional-plus-collective-damage lever can reach — a court ordering the State to remediate an entire river basin — and of how slow enforcement can be without relentless follow-up. That combination, ambition plus incomplete follow-through, is the honest lesson.

Building your own baseline (typical process). You will rarely have the Supreme Court's resources, but the method scales down:

- **Water:** sample and test the streams, wells or aquifer the project will affect *now*, through a certified laboratory or a public university, so you have "before" figures. Photograph and GPS-tag each site.
- **Air and soil:** where relevant, gather existing measurements and take dated, located photographs of current conditions.
- **Ecology:** document the species, forest category, wetland or habitat present, using official inventories (the forest **OTBN** map, the glacier inventory, provincial biodiversity data) and, ideally, a local biologist or university.
- **Human baseline:** record current land uses, Indigenous or *campesino* presence, health conditions and livelihoods — the people and uses the project would displace.

Date-stamp everything, keep originals, and store copies in more than one place.

LAYER 2: IMPACT ANALYSIS

Now show what the project *will do* to that baseline. Read the company's EsIA closely — its own admissions are often your best evidence — and identify: understated water use, missing cumulative-impact analysis (several projects together), ignored alternatives, gaps in the baseline, and violations of a **presupuesto mínimo** (a national minimum standard the project cannot breach). Where you can, commission an independent technical review; a single credible expert report that contradicts the EsIA is worth more than a hundred signatures. Frame each impact against a specific legal duty — the precautionary principle, the forest category, the glacier prohibition, the water law — so it lands as a *legal* problem, not just a worry.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Numbers about hectares move fewer people than numbers about children and livelihoods. Document the health risks (respiratory, water-borne, exposure), the economic base at stake (tourism, agriculture, fishing, farming), and who bears the cost versus who takes the profit. In Argentina, tourism-and-water arguments have repeatedly beaten mining in the courts of public opinion — Esquel's residents asked whether they would "mortgage the glaciers and the water for a handful of multinationals," and won.

How to Structure Your Documentation

Phase 1: Baseline Conditions (Months 1-2)

Collect the "before" record while the project is still on paper — water tests, photographs, inventories, testimonies. This window closes fast once work begins.

Phase 2: Impact Analysis (Months 2-3)

Dissect the EsIA, obtain the file via a freedom-of-information request, and line up an independent expert.

Phase 3: Health/Economic Analysis (Months 3-4)

Compile health and livelihood evidence and translate the technical findings into plain, human terms for the hearing and the press.

Common Documentation Pitfalls (What Fails)

- **Emotion without evidence.** Fear is real but not admissible; pair every claim with a source.
- **Missing the baseline window.** Once construction starts, "before" data is gone forever.
- **No chain of custody.** Undated, unlocated, un-sourced photos and samples are easy to dismiss.

- **Ignoring the file.** The strongest arguments often sit inside the official **expediente** — request it early.
- **One copy only.** Keep duplicates off-site and online.

Documentation Budget Breakdown (ARS)

Argentina's inflation makes fixed peso figures go stale quickly, so treat these as *relative* orders of magnitude and convert to current values (many groups budget informally in US-dollar equivalents). A grassroots documentation effort commonly runs from a few hundred thousand pesos to a few million:

- Independent water/soil laboratory tests: the largest line — several tests at a certified lab.
- Independent technical review of the EslA: often the single most valuable spend.
- Travel, sampling supplies, printing, secure storage: modest but recurring.
- **Cost-saving routes:** public universities and CONICET researchers, pro-bono university law and science clinics, and volunteer professionals within the assembly can replace most paid work. Many of Argentina's strongest cases were documented almost entirely by volunteers.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a case already exists in public records. The job is knowing which record holds which fact, and pulling it before you need it. This section is the shopping list; it also points you to the sources this map links.

Start at the deciding body's register and the municipio's own website. In Argentina the official documents for a project — the Estudio de Impacto Ambiental, the public-hearing (audiencia pública) notices, the Declaración de Impacto Ambiental (DIA) and its conditions — are posted by the body running the review: the provincial environmental authority (environment is largely provincial) for the DIA, the municipio for land use, and national bodies for federally regulated matters. The official documents for most local projects live on the municipio's own website (planning applications, notices, agendas), so check those pages weekly. The legal clock often runs from what is posted there.

The project file and the Estudio de Impacto Ambiental. Get the developer's Estudio de Impacto Ambiental as soon as it is posted — it is public, and it is where the developer admits harm in its own words.

Baseline environmental data. Provincial and national environmental data; protected-area and species records; and the developer's own EIA baseline studies.

Ownership and money. Company ownership from the Inspección General de Justicia / provincial registries; land from the Registro de la Propiedad; and officials' asset declarations.

Case law and precedent. Supreme Court and provincial decisions are published; the amparo ambiental and the Mendoza (Riachuelo) line of cases shape practice.

How to force a document open. A request under the **access-to-information law (Ley 27.275)** and provincial equivalents compels disclosure of records a public body holds. Use the request wording in Section 8E.

Free and low-cost help. Environmental NGOs (e.g. FARN) litigate and advise; the amparo ambiental is a fast, accessible constitutional action communities can bring.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the deciding authority, and the local-ally entries point you to the organisations and legal help already working nearby. Pull that thread first, then follow it into the registers above.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE ASSEMBLIES THAT HOLD

Argentina has a living tradition of the **asamblea** — the open neighbourhood assembly — and it is the country's most effective vehicle for this fight. The anti-mining assemblies of Esquel, Famatina, Andalgala and Chilecito; the wetland and *humedales* assemblies; the anti-fracking and anti-agrochemical groups: nearly every lasting win grew from an assembly. Build one that endures.

Critical Insight About Organising

Projects are patient; they wait out anger. What defeats them is not a single furious march but a base that is still standing in month eighteen. Organise for endurance, horizontal decision-making, and legitimacy — an assembly that visibly represents the community is far harder for officials and companies to dismiss than a handful of activists.

PHASE 1: FOUNDATION (Months 1-2)

Step 1a: One-to-One Conversations

Begin with quiet, personal conversations. Find the people already worried and the trusted figures — a doctor, a teacher, a priest, a rural union delegate, a respected elder. Ask what they fear losing. Relationships, not flyers, are the foundation.

Step 1b: Affinity Groups by Concern

People join for different reasons — water, health, tourism jobs, land, faith, Indigenous rights. Let each concern become a working group inside one assembly, so everyone has a role that fits their motivation.

Step 1c: Use the Community's Own Structures — and Consider a Legal Vehicle

Anchor the assembly in existing community structures (neighbourhood commissions, cooperatives, Indigenous communities, rural associations). To sue, receive donations or sign coalition agreements, consider forming a **civil association** (*asociación civil*) with legal personhood — Argentine law gives registered environmental NGOs explicit standing to bring collective-damage actions, so a formal vehicle can unlock the courtroom door.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Step 2a: Public Assembly (*asamblea abierta*)

Hold an open assembly in an accessible place. Keep it welcoming and concrete: what the project is, what it threatens, what people can do this week. Decide by consensus where you can; nothing builds durable commitment like genuine participation.

Step 2b: Opposition Materials (Factsheets)

Produce a one-page factsheet in plain language: the project, the specific threat, the numbers, the decision date, and one clear ask. Accuracy is everything — a single exaggeration hands the company an easy rebuttal.

Step 2c: Citizen Participation — File Substantive Observations (the decisive record)

This is the step most communities underuse. When **participación ciudadana** opens and the **audiencia pública** is called, file *written, substantive, technical* observations and speak at the hearing. Every serious objection you enter becomes part of the official file, and an authority that approves the project without genuinely answering serious observations creates a **reviewable legal defect** a court can later strike down. Treat the hearing not as catharsis but as evidence-building.

Step 2d: Media Coverage at Launch

Time your public launch to generate first coverage (see Step 5). Arriving in the press as an organised, factual community sets the frame before the company can define you.

PHASE 3: COALITION EXPANSION (Months 3-6)

Step 3a: Organisation Outreach

Reach beyond the neighbourhood: **FARN**, **Greenpeace Argentina**, the **Asociación Argentina de Abogados Ambientalistas**, **FUNDEPS**, university clinics, church networks, rural and Indigenous federations, and the national network of assemblies (**Unión de Asambleas de Comunidades / UAC**). Allies bring lawyers, scientists, reach and precedent.

Step 3b: Coalition Agreements (Written)

Put alliances in writing: shared goals, each group's role, spokespeople, and decision rules. Clear agreements prevent the internal fractures that quietly kill campaigns.

Step 3c: Coordinated Public Work

Move together — joint statements, coordinated filings, shared hearings. A province facing a mine, a university, a national NGO and a bishop at once feels pressure a single town cannot generate.

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Step 4a: Public Demonstrations (marches / *movilizaciones*)

Visible, disciplined, family-friendly mobilisations show breadth and resolve. Argentina's culture of peaceful mass mobilisation is a genuine strength — but see the safety note in Section 10, because the current environment for protest has hardened.

Step 4b: Media Campaign (Ongoing)

Keep a steady drumbeat of coverage: new evidence, milestones, human stories. Momentum is a resource; do not let the story go quiet between crises.

Step 4c: Common Opposition Failure Points (How to Prevent)

- **Burnout:** rotate roles, share load, celebrate small wins.
- **Division:** agree decision rules early; address conflict openly.
- **Co-optation:** beware selective "benefits," jobs or donations offered to split the community.
- **Going quiet after the hearing:** the fight often continues in court for years — plan for the long haul.

Opposition Building Budget: Year-Long Campaign (ARS)

Again, convert to current values given inflation. A year-long grassroots campaign is usually inexpensive relative to what is at stake:

- Printing, banners, sound equipment, venue costs: modest and recurring.
- Transport to hearings, provincial capital, and demonstrations: often the largest line for rural communities.
- Communications (website, data, phone credit): small.
- Legal-vehicle registration and basic accounting: one-time and modest.
- **Most of the work is volunteer.** Argentina's assemblies have repeatedly beaten multinationals on budgets a company spends in an afternoon. Money helps; organisation wins.

STEP 4: LEGAL CHALLENGES — PARTICIPATION, THE AMPARO, THE COURTS, AND THE ENFORCERS

Legal action in Argentina is unusually accessible, because the Constitution and the General Environmental Law were written to open the courthouse door wide. You do not need to be the directly injured party to act; the affected person, environmental NGOs, the Ombudsman and the State all have standing, and *any* person may file an **amparo** to stop activity causing collective environmental damage. Treat the law as three tracks, escalating in force. **Get a lawyer early** — ideally one experienced in *derecho ambiental* — but understand the tracks yourself so you can direct the fight.

TRACK 1: PARTICIPATION AND THE PAPER TRAIL (the front door)

Everything begins with the record. Two tools build it:

- **Freedom of information (Ley 27.275).** Argentina's Access to Public Information law lets anyone request public records — the project file (**expediente**), the EslA, permits, inspection reports, correspondence — usually within a set response time, enforced by the **Agencia de Acceso a la Información Pública**. The Escazú Agreement reinforces this for environmental data. File early and broadly; the documents you obtain are often the campaign's strongest evidence. (Sample request in Section 8E.)
- **Substantive observations at the audiencia pública.** As covered in Step 3, written technical objections filed during participation become part of the file. Their legal power is specific: an authority must genuinely *consider* serious observations, and an approval that ignores them — or a hearing skipped or staged — is a **procedural defect** that can void the decision. This is the cheapest, most underused legal lever in the country.

TRACK 2: THE EIA, THE OBSERVATIONS, THE CONSULTATION, AND THE APPROVAL (the strongest cards)

The environmental approval (the DIA and the EsIA behind it) is where most projects are legally vulnerable. Attack on these grounds:

- **A defective study.** Understated water use, absent cumulative-impact analysis, ignored alternatives, a thin baseline, or reliance on outdated data. The company's own EsIA, read carefully, usually supplies the ammunition.
- **Unanswered serious observations.** If the authority approved without meaningfully responding to substantive objections in the file, the decision is procedurally exposed.
- **Indigenous consultation.** Where a project affects Indigenous communities, **free, prior and informed consultation** under ILO Convention 169 (constitutionally ranked in Argentina) and the constitutional recognition of Indigenous rights (Article 75(17)) is mandatory; its absence or its reduction to a formality is a powerful ground — as communities at **Salinas Grandes** (Jujuy/Salta) have argued against lithium projects.
- **Breach of a minimum standard.** If the project violates a **presupuesto mínimo** — the Forest Law's category for that land, the Glacier Law's prohibition, the Water Law — that is a direct illegality, not a matter of discretion.

TRACK 3: THE AMPARO, THE PRECAUTIONARY MEASURE, THE COURTS, AND THE SPECIAL LAWS

This is Argentina's sharpest track.

- **The amparo ambiental.** Under Article 43 of the Constitution and Article 30 of the General Environmental Law, an amparo is a fast action to stop an act that harms the environment. It is meant to be quick and does not require exhausting every administrative avenue first. Alongside it, the **collective-environmental-damage action** seeks *recomposición* — restoration — reflecting Article 41's restoration-first duty.
- **The precautionary measure (*medida cautelar / medida de no innovar*).** Early in the case you can ask the judge to freeze the project while the merits are decided. Here Argentina's **precautionary principle** (LGA, Article 4) is decisive: it lets a court order protective measures *even under scientific uncertainty* — the absence of proof of harm is not a reason to allow it. A well-argued precautionary request can pause a project for the years a case takes, which has ended more than one project on its own.
- **Which court.** File in provincial court for a provincially approved project, federal court where the matter is interjurisdictional (a shared river, a national park, a federal project). Cases of national importance can reach the **CSJN** — as *Mendoza* did through original jurisdiction over an interjurisdictional basin.
- **The special-law levers.** The **Glacier Law** bars mining in glacier and periglacial zones listed in the National Inventory (the CSJN upheld the law's constitutionality; note that Law No. 27.804 narrowed it in 2026 and that narrowing is itself being challenged on Escazú **non-regression** grounds). The **Forest Law** bars clearing in the highest-protection ("red"/"yellow") **OTBN** categories. Several provinces ban open-pit metal mining with cyanide (the ban Esquel's campaign secured in Chubut). Match your project to the specific statute it breaches.

The provincial-law lever — and defending the laws you already have

Argentina's federalism cuts both ways. Because provinces can legislate *above* the national floor, communities have won province-wide bans that block whole categories of project — open-pit metal mining or cyanide use in Chubut (Law 5001), Mendoza (Law 7722), Tucumán, San Luis, Tierra del Fuego and others. The Supreme Court and provincial high courts have upheld these bans, reasoning from **Article 41** and the people's right of self-determination to restrict harmful activities. Two practical lessons follow. First, if your province has such a law, your fight may be less "stop this permit" than "**enforce the law you already have**" — often a stronger legal footing. Second, these laws are targets: governments repeatedly try to weaken them (Mendoza 2019, Chubut 2021), so defending an existing protection — through mobilisation and the **non-regression** principle — is itself a core form of resistance, and one where communities have a striking track record of winning.

The environmental-insurance lever (*seguro ambiental*)

A quieter tool: the General Environmental Law (Article 22) requires anyone carrying out activities risky to the environment to hold **environmental insurance** (*seguro ambiental*) sufficient to fund restoration of the damage they could cause. Many projects operate without valid, adequate cover. A missing or insufficient *seguro ambiental* is a concrete compliance failure your lawyer can raise — an angle that avoids arguing the science and instead points to a legal box the proponent never ticked.

How the *amparo ambiental* actually works (in practice)

The amparo is deliberately fast and accessible, and understanding its practical shape helps you use it well:

- **Who can file:** the directly affected person, a registered environmental association, the Ombudsman, or the State. This breadth means a community can almost always find a valid claimant — often the local assembly's registered *asociación civil* is the cleanest route.
- **How fast:** it is a summary proceeding meant to move quickly, and it generally does **not** require exhausting every administrative appeal first — important when harm is imminent.
- **What to ask for:** the core of the action is usually the **precautionary measure** (*medida cautelar / de no innovar*) requesting immediate suspension of the project while the case proceeds. Because Argentine courts can grant this on **precautionary-principle** grounds, you do not need to prove certain harm — a credible risk of serious or irreversible damage can be enough.
- **What wins:** procedural illegality (a skipped hearing, unanswered observations), a breach of a minimum-standard law, or missing Indigenous consultation are the strongest grounds, because they do not ask the judge to overrule the agency's science — only to enforce the rules.
- **The realistic payoff:** even where a court ultimately declines to cancel a project, a precautionary suspension can hold it for the years litigation takes — long enough for politics, markets or evidence to change the outcome.

Indigenous consultation: a decisive and often-skipped lever

Where a project affects Indigenous communities, Argentina owes **free, prior and informed consultation** under **ILO Convention 169** (which has constitutional rank) and the Constitution's recognition of Indigenous peoples' rights over their traditional lands (Article 75(17)). In practice this duty is frequently skipped or reduced to a box-ticking meeting held after decisions are made — which is exactly what makes it a powerful legal ground. Communities of the **Salinas Grandes** salt flats (Jujuy and Salta), facing lithium extraction and a 2023 provincial constitutional reform pushed through without genuine prior consultation, have built their resistance substantially on this failure. If your community is Indigenous, or the project sits on or affects Indigenous territory, document the absence or inadequacy of consultation carefully: it can void an approval on its own, and it draws national and international attention (including under the Escazú Agreement and the Inter-American human-rights system).

Legal Strategy Decision Tree

- **Is a decision (DIA / permit / clearing authorisation) still pending?** → Focus on participation, FOI, and substantive observations now (Track 1-2); prepare the amparo in reserve.
- **Was the project approved with a defective study or unanswered observations?** → Amparo challenging the approval's legality, plus a precautionary measure (Track 3).
- **Is work starting or imminent, with real risk of irreversible harm?** → Amparo + urgent **precautionary measure** on precautionary-principle grounds to freeze it (Track 3).
- **Does the project breach a minimum-standard law (glaciers, forests, water) or lack Indigenous consultation?** → Amparo on that specific illegality — the strongest posture.
- **Is there evidence of falsified data, an undisclosed official interest, or a bribe?** → That is Section 11 (corruption), reported to prosecutors and the anti-corruption office in parallel.

Litigation Success Factors

- **Speed.** File before harm is irreversible; courts protect what still exists more readily than what is already destroyed.
- **Precaution over proof.** Argue uncertainty *for* protection — the precautionary principle is written into the law for exactly this.
- **Procedure over merits.** Judges are far more comfortable voiding a decision for a skipped hearing or an ignored observation than for disagreeing with the agency's science.
- **Standing breadth.** Use the widest available claimant — a registered NGO, the affected residents, a sympathetic ombudsman — and the collective-damage frame.
- **A credible expert.** One serious technical report contradicting the ESIA anchors the whole case.

What to Avoid: Legal Failures

- **Waiting too long.** Amparo and appeal windows are short; delay can forfeit the remedy.
- **Suing on feelings.** Frame every claim as a breach of a specific legal duty.
- **Going it alone.** Environmental litigation is specialised; a general lawyer without *ambiental* experience can miss the precautionary and collective-damage tools entirely.

- **Treating the case as the whole campaign.** Litigation without organising and media pressure often wins a pause and loses the war of attrition.

Legal aid: who pays, and how to litigate on little

Cost frightens communities out of court unnecessarily. Argentina offers several routes to litigate cheaply or free:

- **University law clinics** (*clínicas jurídicas*) at public universities take environmental cases as teaching work, at no charge.
- **NGO litigation:** FARN, environmental-lawyer networks and human-rights organisations litigate strategic cases directly or find pro-bono counsel.
- **Beneficio de litigar sin gastos:** Argentine procedure lets people of limited means ask the court to waive filing fees and costs — a formal poverty exemption that removes the up-front financial barrier to an amparo.
- **The amparo itself is cheap by design:** it is a summary action meant to be accessible, not a costly multi-year civil suit.
- **The Ombudsman and the State as claimant:** where a provincial ombudsman or public prosecutor takes up the collective-damage claim, the community may not have to fund the litigation at all.

The lesson from Esquel to Andalgala is consistent: communities with almost no money have beaten companies with almost unlimited money, because the legal tools were built to be reachable. Do not let cost alone stop you from filing.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when it is aimed at a specific legal ground. Here is how the records you gathered map onto the arguments that most often succeed in Argentina — so you file the right fact against the right rule.

A defective audiencia pública → grounds to annul. Where the public hearing was skipped or its results ignored. Feed it with: the hearing record and its gaps.

An amparo ambiental + medida cautelar → suspend and review fast. The environmental amparo can halt a project while it's decided. Feed it with: the rights violation and the risk of irreversible harm.

A DIA issued without proper EIA → nullity. Ignored effects, no alternatives, weak assessment. Feed it with: the study's gaps and your expert critique.

Indigenous consultation (ILO 169, constitutional) skipped → strong ground. Feed it with: the affected community's position and the absence of consultation.

The precautionary and non-regression principles. Argentina's General Environmental Law (Ley 25.675) enshrines them. Feed it with: the environmental risk and the law's principles.

The pattern: match one clean, documented defect to one clear ground, and lead with the procedural ones — they can undo an approval without your having to win the argument about whether the project is "good." The amparo ambiental is fast and accessible; an environmental NGO can tell you how to plead it and the precautionary measure.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Coverage rarely decides a permit by itself, but it changes the political price of approval — and in Argentina, where governors and the national government answer to a highly mobilised public, that price is real. Media turns documentation and organising into pressure.

How Journalists Actually Work

Reporters need a story with a hook, a human face, a conflict and a credible source — filed on a deadline. Make their job easy: hand them a clear factual summary, a compelling local voice, a document, and a photograph, and you are far more likely to be covered accurately. Become the source they trust and call.

The Newsworthiness Formula

A story travels when it has: a **specific threat** (to water, health, a beloved place), a **human face** (a family, a farmer, a child), a **conflict** (community vs. company/government), **stakes with a clock** (a hearing or deadline), and **credible evidence** (a test result, an expert, a document). Assemble these before you pitch.

The framing that travels in Argentina: water

One frame has carried more Argentine environmental campaigns than any other: **water**. "*El agua vale más que el oro*" (water is worth more than gold) and "*el agua no se negocia*" (water is not negotiable) were not slogans invented for the press — they crystallised real fears about aquifers, glaciers and rivers, and they moved people who would never call themselves environmentalists. Esquel, Famatina, Mendoza and the glacier campaigns all won in the court of public opinion largely by making the fight about drinking water, not abstract ecology. If your project threatens a water source, lead with it: name the source, the number of people who depend on it, and the specific risk. Water is concrete, universal and non-partisan — it reaches farmers, tourism workers, mothers and mayors alike, and it is the frame most likely to turn a local worry into a provincial cause.

Know the Outlets That Cover This Beat

- **National press:** *Página/12*, *La Nación*, *Clarín*, *Infobae*, *Perfil*, *Tiempo Argentino*, and *elDiarioAR* — different audiences and slants; pitch each in its own register.
- **Environmental and investigative:** **Agencia Tierra Viva** (socio-environmental conflicts and assemblies), **Chequeado** (fact-checking — useful for correcting company claims), *La Nación Data* and other data teams, and **Mongabay Latam** for forests and biodiversity.
- **Provincial and local media:** often the most important of all, because the decision-maker is provincial — but see the caution below.
- **Radio and social platforms:** local radio reaches rural communities directly; social media lets you publish your own evidence and reach reporters.

Building Reporter Relationships (The Key)

Find the two or three journalists who already cover environment, extractivism or your province. Follow their work, offer them accurate tips and access before you need a favour, and always be reachable and honest. A single trusted reporter is worth more than a mass press-release blast.

Sample Media Timeline

- **Launch:** a factual first story framing the community as organised and evidence-based.
- **Hearing:** coverage of the audiencia and the volume/quality of observations.
- **New evidence:** each lab result or expert report is a fresh news peg.
- **Legal filing:** the amparo and any precautionary measure are strong, concrete stories.
- **Milestones and setbacks:** keep a steady rhythm so the fight never disappears.

Real Media Dynamics (Argentine grounding)

Be strategic about Argentina's media landscape. Ownership is concentrated in a few large groups, and coverage of extractive projects can reflect commercial and political ties — including, at the provincial level, outlets that depend on provincial-government or mining advertising and may downplay opposition. Some national outlets and dedicated socio-environmental media cover assemblies sympathetically; others frame extraction as progress and protesters as obstacles. Map who is likely to be fair, cultivate them, and use your own channels to route around gatekeepers. Never exaggerate — in a polarised press, one inaccuracy becomes the company's headline.

Media Measurement

Track what matters: stories placed, outlets reached, whether your framing and facts survive into the coverage, and — above all — whether decision-makers respond. Coverage that a governor or minister feels compelled to answer is worth more than clippings nobody in power reads.

SECTION 8: EMAILS & LETTERS YOU CAN COPY

Adapt these to your project and province. Keep them factual, brief and specific. Fill the bracketed fields.

8A. Email to a reporter (story pitch)

Subject: Community in [town/province] challenges [project] over risk to [water/health/forest]

Dear [Name],

I write on behalf of [assembly / organisation], residents of [place]. A proposed [mine / fracking pad / factory / development] by [company] is advancing through [authority], with a decision expected around [date]. Our concern is concrete: [one sentence — e.g., "it would draw an estimated X million litres a day from the aquifer that supplies our town of Y people"].

We have [lab results / an independent technical review / the project's own file] documenting this, and residents who can speak to it. There is a clear deadline: [hearing / decision date].

Could we send you a short factual brief and connect you with affected residents? We can provide documents and photographs.

Thank you, [Name, role, phone, email]

8B. Letter to the environmental authority, or the municipality

Subject: Formal concerns regarding [project], file [expediente N°]

To [Authority / official name and title]:

We, [assembly / organisation], representing residents of [place], submit our formal concerns regarding [project], currently under review in file [N°].

Our documented concerns are: (1) [specific impact + the legal duty it breaches — e.g., precautionary principle, Forest Law category, Glacier Law, Water Law]; (2) [specific impact]; (3) [specific impact]. We request that these be formally incorporated into the administrative file and answered on the record before any decision.

We also request confirmation of the dates for citizen participation and the **audiencia pública**, and full access to the file.

Respectfully, [Names, on behalf of [organisation], contact]

8C. Citizen observation (participación) + recorded community position

Subject: Written observations — [project], file [N°] — [name]

To [Authority]:

As [an affected resident / a registered environmental association with standing under Article 43 of the Constitution and the General Environmental Law], I submit the following observations for the file:

1. **[Water / health / forest / glacier / Indigenous]:** [specific, evidenced objection, citing the EsIA page or the legal standard breached].
2. **[Procedure]:** [e.g., the baseline is inadequate; cumulative impacts are not assessed; alternatives were not considered; Indigenous consultation under ILO 169 was not carried out].
3. **[Request]:** that the authority reject the project, or at minimum require [independent study / additional baseline / rejection of the deficient EsIA], and that each observation above be answered on the record.

I request written confirmation that these observations were incorporated into file [N°].

[Name, ID/role, date, signature]

8D. Coalition outreach email (to an organisation)

Subject: Request for support — community opposing [project] in [province]

Dear [Organisation],

[Assembly / group] in [place] is opposing [project], which threatens [impact]. We have [documentation / an active

assembly / an approaching hearing on [date]].

We would value your support with [legal advice / an amparo / a technical review / amplification / standing as a co-claimant]. Given your work on [their focus], we believe this fits your mission. Could we arrange a call this week?

With respect and solidarity, [Name, organisation, contact]

8E. Freedom-of-information request (Ley 27.275)

Subject: Access to public information request — Law 27.275 — [project / file N°]

To [Authority / its Access to Information officer]:

Under the Right of Access to Public Information (Law 27.275), I request copies of the following: (1) the complete file [N°] for [project], including the Environmental Impact Study; (2) all permits, resolutions and technical reports issued or pending; (3) the record of citizen participation and the audiencia pública; (4) all correspondence between the authority and [company] regarding this project; (5) [inspection / monitoring reports, if operating].

I request these in electronic form within the legal time limit. If any item is withheld, please cite the specific legal ground.

[Name, contact, date]

8F. Legal challenge — amparo / precautionary measure / complaint (get advice)

Note: This is a template to brief a lawyer, not a substitute for one. File through counsel experienced in *derecho ambiental*.

Subject: Instructions for environmental *amparo* — [project]

Facts: [project, authority, approval or imminent work, date]. Harm: [specific, and why it is serious and potentially irreversible]. Legal grounds: [Article 41 / Article 43 of the Constitution; General Environmental Law No. 25.675 (precautionary principle, Art. 4; collective damage, Art. 30); the specific minimum-standard law breached — Glacier / Forest / Water; absence of Indigenous consultation; procedural defect — hearing skipped or serious observations unanswered]. Requested: an **amparo** and an urgent **precautionary measure (medida cautelar / de no innovar)** to suspend the project pending the merits, on precautionary-principle grounds. Claimant/standing: [affected resident / registered environmental association / request Ombudsman intervention]. Evidence attached: [file, EsIA excerpts, lab results, expert report, photographs].

8G. Press release (effective)

FOR IMMEDIATE RELEASE — [date]

[Community/assembly] warns [project] threatens [water/health/forest] of [place]

[Place] — Residents of [place], organised as [assembly], today [filed observations / launched a legal challenge / held an assembly] against [project] by [company], warning it would [specific, evidenced impact].

"[Short, human quote from a named resident]," said [name, role].

[One paragraph of evidence: the numbers, the source, the legal duty at stake.] A decision by [authority] is expected around [date]; the community is calling for [clear ask].

Documentation and interviews available on request. **Contact:** [name, phone, email]

8H. Legal strategy decision tree (quick recap)

- Decision still pending → participation + FOI + substantive observations; prepare the amparo.
- Approved with a defective study or unanswered observations → amparo challenging legality + precautionary measure.
- Work imminent, irreversible harm → amparo + urgent precautionary measure (precautionary principle).
- Breaches a minimum-standard law or lacks Indigenous consultation → amparo on that illegality (strongest).
- Evidence of falsified data, undisclosed interest or a bribe → report to prosecutors and the anti-corruption office in parallel (Section 11).

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a year-long campaign. With an afternoon a week you can still do real damage to a bad project. In rough order of impact for the effort:

1. **Take part in the audiencia pública and submit written observations before the deadline. Name one or two concrete grounds (water, a glacier or forest, an affected community). It enters the record.**
2. **Get the Estudio de Impacto Ambiental and quote its worst admission back to the autoridad ambiental.** The developer's own words carry the most weight.
3. **Send one accurate email to a local reporter** (Section 8A). A single story raises the political cost and can reach a lawyer or expert.
4. **File one Ley 27.275 request** (Section 8E) — even if someone else uses it later.
5. **Point one environmental NGO at the fight.** An environmental NGO such as FARN may take it from there — you hand off, you don't have to lead.
6. **Consider an amparo ambiental with a precautionary measure** — a fast, accessible action that can suspend a project while the court decides.
7. **Tell your neighbours the deadline.** Ten individual submissions beat your one.

Do only the first three and you've preserved the record, put the project in the press, and left a trail others can pick up.

SECTION 9: WHEN THE SYSTEM IS TILTED TOWARD APPROVAL (HONEST MECHANICS)

Important Caveat

Sometimes you will do everything right and the project will still advance. Often this is not corruption — it is a system whose ordinary, lawful mechanics lean toward "yes." Understanding this honestly protects you from despair and from chasing conspiracies where there are none.

What This Tilt DOES (and DOESN'T DO)

The tilt is structural. In Argentina it works through several legal, everyday facts:

- **Provinces own the resource and depend on its revenue.** The government that regulates a mine or oilfield often also collects its royalties and counts on them for salaries — so it wants the project to proceed.
- **The company pays for the study.** The EsIA is prepared by consultants the proponent hires; it is rarely neutral.
- **The hearing is non-binding.** The audiencia pública must happen, but the authority can lawfully approve over community objection.
- **National policy favours extraction.** Since 2023 the national government has prioritised mining, lithium and Vaca Muerta shale as a source of dollars; the **RIGI** locks in incentives and stability for large investments for thirty years, which critics say insulates them from later challenge.
- **Oversight has been weakened.** The national environment authority was downgraded from a ministry; the national **Ombudsman** post — a key standing-holder for environmental suits — has sat vacant for years; the native-forest protection fund is chronically underfunded; and in 2026 Congress narrowed the **Glacier Law**.

The current climate makes the tilt concrete. In 2023 the Province of Jujuy pushed through a constitutional reform quickly and without prior Indigenous consultation, in a lithium-rich region where Salinas Grandes communities were already resisting extraction. In late 2025, a Milei-aligned government in Mendoza advanced a copper project (PSJ Cobre Mendocino) that drew the province's largest environmental mobilisations since 2019. And nationally, the RIGI's thirty-year stability guarantees are designed precisely to make big projects harder to unwind later. These are the mechanics of a system leaning toward "yes" — lawful, deliberate, and beatable only with organisation, evidence and law applied together.

What the tilt does **not** do is make opposition pointless. It raises the bar. The counter is to lean on the tools the tilt cannot easily neutralise: the mandatory hearing record, the precautionary principle, minimum-standard laws, Indigenous

consultation, and the courts — plus the political cost that organising and media impose.

Assessment Framework — Determine Your Situation

Ask honestly:

- Is the process *legal but biased* (study by the proponent, non-binding hearing, a province that wants the revenue)? → Fight through evidence, procedure and the courts; expect a long campaign.
- Or are there *illegal acts* (a falsified study, an official with a hidden stake, a hearing never held, records withheld unlawfully)? → That is corruption; go to Section 11.

Most cases are the first. Knowing which you face keeps your strategy — and your claims — credible.

Direct Action and Safety: The Criminalisation Note

Argentina is a democracy with strong environmental-rights tools and, relative to the worst-affected countries in the region, comparatively low levels of lethal violence against defenders. That is the honest baseline — and it should not breed complacency, because the environment for protest and territorial defence has hardened.

- **Protest is being criminalised.** Since late 2023 the national security ministry has applied an "anti-picket" **protest protocol**, and demonstrations — including against the *Ley de Bases* in 2024 and recurring weekly protests — have been met with rubber bullets, tear gas, beatings and arbitrary detentions. Peaceful assembly remains a right, but expect a harder policing posture and prepare legal observers.
- **Territorial defenders face charges.** Communities opposing lithium at **Salinas Grandes** (Jujuy/Salta) have faced threats, harassment and criminal complaints; in Patagonia, the Mapuche land conflict has produced deaths — **Santiago Maldonado**, who disappeared and died during a 2017 Gendarmería operation, and **Rafael Nahuel**, killed by security forces in 2017. In September 2024 a "Unified Command for Productive Security" was created to give extractive sectors "special security."
- **Know your protections.** The **Escazú Agreement (Law 27.566)** obliges the State to protect environmental defenders and forbids **regression** in environmental protection — arguments civil society is actively using in court. Keep your actions peaceful and lawful, use legal observers, connect early with human-rights organisations (**CELS**, provincial ombudsmen, **ANDHES** in the north-west), and never let a member act alone under threat.

Direct action is a personal and collective choice with real legal risk in the current climate; make it consciously, together, and with legal support arranged in advance.

Honest Assessment

Some projects are stopped. Many are delayed, shrunk or improved. Some proceed despite everything you do. A delay is not failure: it buys time for politics to shift, for a new government, for a market to move, for stronger evidence. Campaigns that "lost" the permit have still won bans, conditions, monitoring rights and precedents that protected the next community. Measure success honestly and broadly.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real, and it looks different in each institution. Read your situation actor by actor — the type of capture changes which lever works, and sometimes tells you a lever is closed. Handle this carefully: the same facts that can sink a project can expose you to a defamation suit if you get them wrong.

Municipio officials and councillors. The most common pressure point: a municipio dependent on the project, or an official with a developer tie. Signs: a sudden reclassification or rezoning, a rushed vote, a report that ignores its own evidence. Lever: the *ética pública* and conflict-of-interest rules — misconduct can void acts and sanction officials.

The provincial environmental authority. Capture here is usually softer — political direction to approve, or reliance on the developer's own consultants. Signs: an assessment that reads as the developer's document. Lever: an *amparo ambiental* or an administrative/judicial nullity action.

The developers. Watch for land assembled quietly before a project is public, shell companies, and revolving-door hires of

former officials or regulators. the company registries, the property registry, and asset declarations surface the timeline a journalist needs.

The courts. Argentina's amparo ambiental and its General Environmental Law principles are strong, accessible levers, and courts have suspended projects and ordered clean-ups (Riachuelo). The constraints are provincial variation and enforcement; the medida cautelar is key where work could start before judgment.

Provincial and national politicians and priority projects. Where a project is a stated provincial or national priority, expect the whole chain to lean toward yes. That is not corruption, but capture of a kind; the honest path is procedural rigour plus public pressure.

How to act on it, safely. Document from public sources before you speak. Route serious allegations through lawyers and the proper bodies — the Oficina Anticorrupción, the Auditoría General for public money, and the fiscalía for crimes — not social media. A reckless public accusation can expose you to defamation liability and hand the developer a way to change the subject.

INTEGRATION: HOW ALL FIVE STEPS WORK TOGETHER

Realistic 12-Month Campaign Timeline

- **Months 1-2 (Foundation):** identify the target precisely; file the first FOI request; begin baseline documentation; hold the first one-to-ones and found the assembly.
- **Months 2-3 (Launch):** public assembly; factsheet; first media story; monitor for the participation window.
- **Months 3-4 (Evidence):** dissect the EsIA; commission an independent review; compile health and economic impacts.
- **Months 3-6 (Coalition):** bring in NGOs, universities, church and Indigenous allies; sign written agreements; register a legal vehicle if needed.
- **The hearing (whenever called):** file substantive written observations and speak — the decisive record.
- **Months 6-12 (Escalation):** sustained mobilisation and media; prepare and, if warranted, file the **amparo** and precautionary measure; pursue any corruption evidence through proper channels.
- **Throughout:** keep the base intact, the evidence growing, and the story alive.

Key Principles (What Separates Winning Campaigns from Losing Ones)

- **Organise for endurance, not for one march.** The base still standing in month eighteen is the one that wins.
- **Make it legal, not just emotional.** Every claim tied to a specific duty.
- **Use procedure and precaution.** Argentina's sharpest tools reward the community that builds a clean record and argues uncertainty for protection.
- **Combine all five tracks.** Documentation, organising, law and media reinforce one another; alone, each plateaus.
- **Tell the truth, always.** Credibility is the one asset a community cannot buy back.

Warning Signs — Act Early

- Survey crews, notices, or a filed EsIA — the project is real; start now.
- A participation window or hearing announced — your decisive record is due.
- Work beginning — file for a precautionary measure *before* harm is irreversible.
- Records refused, a hearing skipped, or a study that reads as fiction — escalate to legal and, if warranted, corruption channels.

FINAL ASSESSMENT: OUTCOMES & WHEN TO REASSESS

Real Outcomes: What Winning Looks Like

Argentine communities have secured the full range of outcomes: outright cancellations (Esquel's cyanide-mine defeat and the provincial ban that followed; assemblies that stopped projects in Famatina and elsewhere), court-ordered restoration of a devastated river basin (*Mendoza*), long precautionary suspensions that outlasted a company's patience, projects shrunk or bound by real conditions, and legal precedents — on the precautionary principle, on glaciers, on collective standing — that armed the next community. Winning is a spectrum. A binding condition, a monitoring right, a two-year

delay, or a precedent can each be a genuine victory. The Mendoza assemblies did not merely defeat a single mine — they built a provincial law and then defended it twice against repeal, changing the political reality of extraction in the province for a generation. That is what durable organising compounds into: not one permit denied, but a standing capacity to say no.

Decision Point: Continue, Modify, or Reassess

- **Continue** if the decision is still open, your base is intact, and legal or political openings remain.
- **Modify** if one track has stalled — shift weight to the courts, to media, or to the political arena.
- **Reassess** honestly if every avenue is exhausted — and even then, consolidate what you won (conditions, precedent, an organised community) and prepare for the next fight, because there usually is one.

The Bottom Line

Argentina hands communities a rare toolkit: a constitutional right to a healthy environment, a duty on polluters to *restore*, a fast **amparo** almost anyone can file, a precautionary principle that lets courts pause projects under uncertainty, and a deep tradition of the neighbourhood assembly. The system also leans toward approval, and under current policy that lean has grown steeper. The communities that win are not the angriest or the best funded — they are the ones that organise for the long haul, document relentlessly, use the legal doors precisely, and never surrender their credibility. That combination has stopped mines above towns and forced the State to clean a poisoned river. It can work for you.